



CHAPTER ci.

An Act to confirm certain Provisional Orders of A.D. 1930.
the Minister of Health relating to Brentford and
Chiswick and Ramsgate. [10th July 1930.]

WHEREAS under the provisions of the Public Health 38 & 39 Vict.
Act 1875 the Minister of Health has made certain c. 55.
provisional orders which need confirmation by Parlia-
ment :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders of the Minister of Health which are set out in the schedule to this Act are hereby confirmed and shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (Brentford and Chiswick and Ramsgate) Act 1930. Short title.

[Ch. ci.] *Ministry of Health* [20 & 21 GEO. 5.]
*Provisional Orders Confirmation (Brentford and Chiswick
and Ramsgate) Act, 1930.*

A.D. 1930.

SCHEDULE.

URBAN DISTRICT OF BRENTFORD AND
CHISWICK.

*Brentford
and Chiswick
Order.*

Provisional Order for partially repealing a local Act.

WHEREAS the Urban District Council of Brentford and Chiswick are the local authority within the meaning of the Public Health Act 1875 for the Urban District of Brentford and Chiswick and there are in force in the Urban District the unrepealed provisions of the Chiswick Improvement Act 1858 ;

And whereas the Council wish to regulate by means of byelaws with respect to new streets and buildings made under the Public Health Acts 1875 to 1925 certain matters which now are regulated by provisions of the local Act ;

And whereas the Council have applied to the Minister of Health for the issue of a Provisional Order partially to repeal the local Act in the manner following :

Now therefore the Minister of Health in pursuance of the powers given to him by section 303 of the Public Health Act 1875 and of any other powers in that behalf hereby orders as follows :—

Short title
commence-
ment and
interpreta-
tion.

1.—(1) This order may be cited as the Brentford and Chiswick Order 1930 and shall come into operation on the first day of October nineteen hundred and thirty.

(2) In this order “the local Act” means the Chiswick Improvement Act 1858.

Partial
repeal of
local Act.

2. Section 2 of the local Act so far as it incorporates the provisions of the Towns Improvement Clauses Act 1847 mentioned in the Schedule to this order is hereby repealed.

SCHEDULE.

PROVISIONS OF THE TOWNS IMPROVEMENT CLAUSES
Act 1847.

So much of section 36 as did not by virtue of the Chiswick Order 1883 cease to be incorporated with the local Act and sections 37 to 41 (with respect to the drainage of houses) ;

Sections 110 to 112 (with respect to supplying buildings with fresh air).

BOROUGH OF RAMSGATE.

A.D. 1930.

*Provisional Order amending the Ramsgate Corporation
Act 1922.*

*Ramsgate
Order.*

WHEREAS the borough of Ramsgate is an urban district of which the mayor aldermen and burgesses acting by the council (in this order referred to as "the Corporation") are the urban authority for the purposes of the Public Health Act 1875 and the Ramsgate Corporation Act 1922 is in force in the borough ;

And whereas by section 24 of the local Act of 1922 the Corporation are empowered to construct and provide baths and to acquire and appropriate land for that purpose and by subsection (4) of that section they are empowered to let on lease to any company or person for such term and on such conditions as they may think fit any baths so constructed or their powers and rights with regard to the provision maintenance and carrying on of baths under that section ;

And whereas by section 25 of the local Act the Corporation are empowered to construct and maintain bathing pools baths shelters pavilions and conveniences upon the foreshore within the borough of Ramsgate and may take rents or charges for the use thereof or for admission thereto ;

And whereas the said foreshore is vested in the Corporation ;

And whereas the Corporation have applied to the Minister of Health for the issue of a provisional order to amend the local Act in the manner following :

Now therefore the Minister of Health in pursuance of the powers given to him by section 303 of the Public Health Act 1875 and of all other powers in that behalf hereby orders as follows :—

1.—(1) This order may be cited as the Ramsgate Order 1930 and shall come into operation on the date of the Act of Parliament confirming it.

Short title
commence-
ment and
interpreta-
tion,

(2) In this order—

"the local Act" means the Ramsgate Corporation Act 1922 ;

"the Minister" means the Minister of Health.

2. Section 25 of the local Act shall be amended by the addition of the following provision :—

Letting of
power to
provide
bathing
pools &c.
and of
foreshore.

"Subject to the consent of the Minister of Health the Corporation may let on lease to any company or person for such term and on such conditions as the Minister may approve any

[Ch. ci.] *Ministry of Health* [20 & 21 GEO. 5.]
*Provisional Orders Confirmation (Brentford and Chiswick
and Ramsgate) Act, 1930.*

A.D. 1930. of their powers and rights under the foregoing paragraph of
this section and for that purpose may subject to the like consent
and approval let on lease to a company or person to whom any
of their powers or rights are so let any part of the said foreshore
which may be vested in the Corporation.”

*Ramsgate
Order.*

Application
of section
151 of
local Act.

3. Section 151 of the local Act (which provides that works
below high-water mark shall not be constructed by the Corporation
without the consent of the Board of Trade) shall apply to the
construction alteration or extension of any work by lessees of
the Corporation under the powers of section 25 of the local Act
as amended by this order as if such work were constructed altered
or extended by the Corporation.

Inquiries
and ex-
penses.

4.—(1) The Minister may direct any inquiries to be held
by his inspectors which he may deem necessary for the purposes
of section 25 of the local Act as amended by this order and those
inspectors shall for the purposes of any inquiry have all such
powers as they have for the purposes of inquiries directed by the
Minister under the Public Health Act 1875.

(2) Where the Minister causes any such inquiry as aforesaid
to be held the costs incurred by the Minister in relation to that
inquiry (including such sum not exceeding five guineas a day
as the Minister may determine for the services of any inspector
or officer of the Minister engaged in the inquiry) shall be paid
by the Corporation and the Minister may certify the amount
of the costs so incurred and any sum so certified and directed
by the Minister to be paid by the Corporation shall be a debt
due to the Crown from the Corporation.

Printed by EYRE and SPOTTISWOODE, LTD.,
FOR

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Acts of Parliament.

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